

HEADNOTE

“An application for provisional measures—like a statement of claim—renders the invocation of the exception under Rule 5 of the Rules of Procedure (“opt-out”) ineffective. The blocking mechanism ensures that the EPG’s jurisdiction can no longer be withdrawn.

The scope of protection of a European patent must be interpreted in accordance with Article 69(1) of the EPC, together with its Protocol on Interpretation, in conjunction with Article 24(1)(c) of the UPCA.

In proceedings for provisional measures, the prevailing respondent may, upon request, be awarded final costs. Even if the applicant is successful in the main proceedings, it cannot successfully claim the costs of these proceedings as the unsuccessful party.”

COURT
Local Division in Vienna

PROCEEDINGS
Application for provisional measures

PATENT
EP 3 398 487 B1

Method and device for producing milk foam

KEYWORDS

"Opt-out" following a request for provisional...

Interpretation of patent claims

Infringement (no)

Rule 5 Lodging of an Application to opt out and withdrawal of an opt-out

SUMMARY

The Local Division in Vienna ruled on an application for provisional measures. The patent at issue concerns a method and device for producing milk foam. The court addressed three key legal points. First, it held that filing an application for provisional measures — like filing a statement of claim — renders any subsequent invocation of the opt-out mechanism under Rule 5 of the Rules of Procedure ineffective; the blocking mechanism prevents the jurisdiction of the UPC from being withdrawn once proceedings have been initiated. Second, the court clarified that the scope of protection of a European patent must be determined in accordance with Article 69(1) EPC and its Protocol on Interpretation, read in conjunction with Article 24(1)(c) UPCA. Third, the court held that a respondent who prevails in provisional measures proceedings may, upon request, be awarded the final costs of those proceedings; even if the applicant is successful in the main proceedings on the merits, it cannot recover the costs of the provisional measures proceedings as it was the unsuccessful party in those proceedings.